Bernard J Youngblood
Wayne County Register of Deeds
August 20, 2013 10:07 AM
Inst: 2013364234 Liber: 50986 Page: 469
Electronically Recorded

LOAN# 000157489

DOWN PAYMENT ASSISTANCE MORTGAGE

PARCEL TAX ID#: 56-082-03-0292-000

MICHIGAN STATE HOUSING DEVELOPMENT AUTHORITY
Homeownership
735E. Michigan Avenue
Lansing, MI 48912

THIS MORTGAGE, made and entered into this 1st day of August , 2013 , between Howard Wazeerud-Din II, A SINGLE MAN

whose address is 10958 Oak Lane #6201 , Belleville, MI 48111

(herein referred to as the Mortgagor), and Michigan State Housing Development Authority, whose address is 735 E. Michigan Avenue, Lansing, Michigan 48912 (hereinafter referred to as the "Mortgagee").

WITNESSETH:

WHEREAS, the Mortgagor, for itself, its successors and assigns, is acquiring the property described in this Mortgage pursuant to the Down Payment Assistance Program for the purpose of acquiring the Mortgagor's principal place of residence; and

WHEREAS, the Mortgagor is justly indebted to the Mortgagee in the principal sum of FIVE THOUSAND NINE HUNDRED SIXTY FIVE AND NO/100 Dollars ($ 5,965.00) evidenced by its Mortgage Note (hereinafter referred to as the Note) made August 1st, 2013 .
Said Note and all of its terms are incorporated herein by reference and this Mortgage shall secure any and all extension thereof, however evidenced.

Initials: AW

SFH 100C (05/11)
DPA Mortgage

NOW, THEREFORE, the said Mortgagor, for the better securing of the payment of such principal sum of money and the performance of the covenants and agreements herein contained does by these presents, MORTGAGE AND WARRANT unto the Mortgagee, its successors or assigns, the lands, premises and property situated in the CITY of Westland , County of WAYNE and State of Michigan, described as follows, to wit:

CITY OF WESTLAND, COUNTY OF WAYNE, STATE OF MICHIGAN:

LOT 292, "ANNAPOLIS PARK SUBDIVISION NO. 3", ACCORDING TO THE PLAT THEREOF AS RECORDED IN LIBER 77 OF PLATS, PAGE 13, WAYNE COUNTY RECORDS.

TOGETHER with the privileges and appurtenances to the same belonging and all of the rents, issues, and profits which may arise or be had therefrom.

TO HAVE AND TO HOLD the above-mortgaged premises, together with the appurtenances thereunto appertaining unto the said Mortgagee forever, provided that if the Mortgagor shall pay the principal and all interest as provided in the Note executed by the Mortgagor to the Mortgagee and shall pay all other sums hereinafter provided for, and shall keep and perform all of the covenants herein contained, then this Mortgage and the Note shall be null and void; otherwise to remain in full effect.

AND the Mortgagor hereby covenants as follows:

1. The Mortgagor will pay the Note at the times and in the manner provided therein.

2. So long as this Debt is unpaid, if the Property is sold or transferred, or ceases to be the principal residence of the Mortgagor, without the Mortgagee's prior written consent, or if the Mortgagor repays in full any mortgage loans encumbering the Property that are senior to the Debt, such act shall be deemed a breach of a covenant in this Mortgage and all the sums secured by the Mortgage shall be immediately due and payable. For purposes of this Mortgage, the words "sold or transferred," individually or together, specifically include, but are not limited to, an outright sale, sale on a land contract, sale with an assumption of the Mortgage, sale with wrap around financing, transfer by operation of law either upon the death of the Mortgagor or otherwise, and leasing of the property.

3. The Mortgagor will not permit or suffer the use of the property for which this Mortgage is given for any purpose other than Mortgagor's principal place of residence; nor will it permit or suffer alteration of or addition to any structure upon said property without the prior written consent of the Mortgagee.

4. The Mortgagor will pay before the same become delinquent or subject to interest or penalties, all taxes, assessments, water rates, and all other charges and encumbrances which now are or shall hereafter be or appear to be a lien upon to said premises or any part thereof (unless otherwise agreed to in writing), and that in default thereof; the Mortgagee may, without demand or notice, pay the said taxes, assessments, charges or encumbrances, and pay such sum of money as the Mortgagee may deem to be necessary therefore, and shall be the sole judge of the legality or validity thereof and of the amount necessary to be paid in satisfaction thereof.

5. The Mortgagor will keep the improvements now existing or hereafter erected on the mortgaged property insured against loss by fire and such other hazards, casualties, and contingencies as may be stipulated by the Mortgagee, unless otherwise agreed in writing.

6. The Mortgagor will not permit or commit any waste on said premises and will keep the buildings thereon and all equipment therein mortgaged, if any, in good repair, and promptly comply with all laws, ordinances, regulations, and requirements of any governmental body affecting the said mortgaged premises, and should said premises or any part thereof require inspections, repair,

care, or attention of any kind or nature not provided by the Mortgagor, or by another party responsible therefore, the Mortgagee, being hereby made sole judge of the necessity therefore, may, after notice to the Mortgagor, enter or cause entry to be made on said property, and inspect, repair, protect, care for or maintain said property as the Mortgagee may deem necessary, and may pay such sum of money as the Mortgagee may deem to be necessary therefore, and shall be the sole judge of the amount necessary to be paid.

7. Should any default be made in the covenants of this Mortgage, the Mortgagee may cause the abstract or abstracts of title, or Title Insurance Policy and the tax histories of said premises to be certified to date, or may procure new abstracts of title or Title Insurance Policies and tax histories or title search in case none were furnished to the Mortgagee, and may pay therefore such sums as it may deem to be necessary, and if unpaid, may pay the Mortgage tax on this instrument, and shall be the sole judge of the amount necessary to be paid therefore.

8. The Mortgagor shall pay the Mortgagee forthwith the amounts of all sums of money, which the Mortgagee shall pay or expend pursuant to the provisions of the Note and this Mortgage, and such payments by the Mortgagee, shall be a lien on to premises under this Mortgage.

9. Should any default be made in the payment of principal, or should default be made in the performance of any other covenants of this Mortgage or the Note secured hereby, or any part thereof, when the same is payable or the time of performance has arrived, as above provided, then all sums due hereunder shall, at the option of the Mortgagee, without notice, become immediately payable thereafter, although the period above limited for the payment thereof may not have expired, anything herein contained or contained in the Note to the contrary notwithstanding, and any failure to exercise such option shall not constitute a waiver of the right to exercise the same at any other time with respect to the same default or any subsequent default.

10. No forbearances on the part of the Mortgagee and no extension of the time for the payment of the debt hereby secured, given by the Mortgagee, shall operate to release, discharge, modify, change or affect the original liability of the Mortgagor herein either in whole or in part.

11. Upon default being made in the payment of the sums of money herein agreed to be paid or in the performance of any of the covenants or agreements herein contained according to the terms hereof or of the Note secured hereby, the Mortgagee is hereby authorized and empowered to sell or cause to be sold the property hereby mortgaged, and to convey the same to the purchaser, pursuant to the statute in such case made and provided, and out of the proceeds of such sale to retain the moneys due under the terms of this Mortgage, the costs and charges of such sale and also the attorney's fee provided by statute, rendering the surplus moneys (if any there should be) to to said Mortgagor.

12. The convenants herein contained shall bind, and the benefits and advantages shall insure to, the respective successors and assigns of the parties hereto

IN WITNESS WHEREOF, the Mortgagor has caused these presents to be signed as of the day and year first above written.

Property Address: **29823 Matthew St Westland, MI 48186**

Howard Wazeerud-Din II

Mortgagor **Howard Wazeerud-Din II**

Mortgagor

Mortgagor

Mortgagor

Initials: HW

STATE OF MICHIGAN)
COUNTY OF Wayne)

The foregoing instrument was acknowledged before me this 1st day of August, 2013 ,
by Howard Wazeerud-Din II, A SINGLE MAN

Notary Public, State of Michigan
County of
My Commission Expires:

ADAM DROBET
NOTARY PUBLIC, Wayne County, MI
My Commission Expires March 10, 2018
Acting in Wayne County

Drafted by: Name KATHY BEATTY

Address 27862 WOODWARD AVENUE
ROYAL OAK, MI 48067

And when Recorded,
Return to: ROSS MORTGAGE CORPORATION
27862 WOODWARD AVENUE
ROYAL OAK, MI 48067

Initials:

SFH 100C (05-11)
DPA Mortgage